Livincart Furniture Agreement

This Livincart Work Agreement is made and entered into on this, (“Effective Date”),

This agreement is made on 09.07.2026 between Mr. Anees Abubaker, M/S Pencil Plus, Kadavil Castle, Toll Junction, Edappally (P.O), Kochi -24, and Mr. Sanooj Nediyamparambil Sulthan and Mrs Cini Sanooj and authorised signatory, Nediyamparambil House, PO Talikulam, Thrissur (Dt), Kerala, India – 680569 for the Interior Design work of the House in Talikulam Puthiyangadi.

1. Parties

1.1 This Agreement is executed between LivinCart and Services Private Limited ('Company') and the Client identified in the quotation or work order. The Parties acknowledge that this Agreement governs their contractual relationship for the supply, manufacture and installation of furniture.

1.2 This Agreement shall automatically apply to all future quotations, purchase orders, approved variations and related project documents unless otherwise agreed in writing.

1.3 Both Parties shall act in good faith, cooperate with each other, promptly provide information, approvals and access required for successful execution of the project, and comply with all applicable laws.

1.2 This Agreement shall govern all furniture supplied under every quotation, purchase order, work order and approved variation unless otherwise agreed in writing.

1.3 Both parties agree to perform their respective obligations in good faith and in accordance with applicable laws.

2. Definitions

2.1 'Products' means all furniture, accessories and components supplied by the Company.

The definitions contained herein shall apply throughout this Agreement unless the context otherwise requires and shall also extend to annexures and approved project documents.

2.2 'Services' include consultation, design, measurement, engineering, manufacturing, procurement, delivery, installation, testing and after-sales support.

2.3 'Project Documents' include quotations, BOQs, drawings, specifications, material schedules and written approvals.

3. Scope of Work

3.1 The Company shall design, manufacture, procure, supply and install furniture as described in the approved quotation.

The Company shall execute the work in a professional manner using industry-standard practices. Any work outside the agreed scope, including civil, electrical, plumbing or structural modifications, shall be treated as additional work and charged separately after written approval.

3.2 The scope may include customized furniture, modular furniture, loose furniture and standard products.

3.3 Items not specifically mentioned in the quotation shall be treated as exclusions unless added through a written Change Order.

3.4 The Company may engage qualified subcontractors while remaining responsible for overall project execution.

4. Design and Approvals

4.1 Production shall commence only after the Client approves drawings, dimensions, colours, fabrics, finishes and specifications.

The Client shall carefully review all drawings before approval. Approved drawings shall be deemed final, and any subsequent modifications may require redesign, remanufacturing, additional costs and revised completion schedules.

4.2 Any revision after approval shall require written confirmation and may affect price and delivery.

4.3 The Company shall not be responsible for delays resulting from late approvals.

5. Materials and Specifications

5.1 Materials shall conform to the approved quotation and specification schedule.

Minor variations in colour, shade, texture, grain pattern and finish due to natural materials or manufacturing processes shall be commercially acceptable and shall not constitute a defect.

5.2 Natural variations in wood grain, veneer, marble, leather, fabric or stone are inherent characteristics and shall not be considered defects.

5.3 Equivalent substitute materials may be proposed only where the original material becomes unavailable and shall require Client approval.

6. CONTRACT VALUE AND PAYMENT TERMS

3.1 Contract Value

The total contract value for the scope of work described herein shall be **₹(eg:52000) (Rupees One Lakh Seventy-Five Thousand Only)**.

The Contract Value is **all-inclusive** and covers the cost of materials, labour, manufacturing, transportation, installation, Goods and Services Tax (GST), and all other applicable taxes, duties, and charges, unless otherwise expressly stated in writing.

3.2 Payment Milestones

The Customer shall make payments to the Company in accordance with the following milestone-based payment schedule:

Payment Stage	Percentage
Initial agreement	10%
Design finalisation	50%
Before Dispatch	35%
Upon final Handover	05%

6.1 Payments shall be made strictly as per the agreed payment schedule.

Failure to make payments as agreed may entitle the Company to suspend manufacturing, delivery or installation until outstanding dues are cleared, without affecting any other legal remedies available.

6.2 GST and other applicable taxes shall be charged separately unless expressly included.

6.3 Delayed payments may result in suspension of work, delayed delivery and applicable interest where legally permissible.

6.4 Ownership of the furniture shall remain with the Company until full payment has been received.

7. Delivery and Installation

7.1 Delivery Schedule

The Company shall use reasonable efforts to manufacture, deliver and install the Products within the estimated timelines specified in the approved Quotation, Purchase Order or Delivery Schedule. The Parties acknowledge that all delivery and installation dates are estimates based on production schedules, material availability, transportation and other operational factors, and shall not constitute a guarantee unless expressly agreed in writing.

The Client shall provide safe and unrestricted access to the Project Site, adequate storage space, electricity, lighting, water (where required) and a safe working environment necessary for delivery and installation. Any delay arising from the Client's failure to provide site readiness, required approvals, access, utilities or cooperation, or due to the acts or omissions of third parties, shall entitle the Company to a reasonable extension of time for completion without incurring liability for such delay.

7.2 Site Readiness

The Client shall ensure that all civil, electrical, plumbing, flooring, painting, false ceiling, air-conditioning and other prerequisite works affecting installation have been completed prior to the scheduled delivery date. The Client shall also obtain all necessary permissions and provide uninterrupted access to enable timely execution of the work.

Where delivery or installation is delayed due to the Client's failure to ensure site readiness, the Company shall be entitled to recover any reasonable additional costs incurred, including storage, transportation, labour, remobilization or repeated site visits, provided such costs are properly documented and communicated to the Client.

7.3 Transfer of Risk and Title

The risk of accidental loss of or damage to the Products shall pass to the Client upon successful delivery at the Project Site or upon completion of installation and handover, whichever is applicable.

Notwithstanding the transfer of risk, ownership and title to the Products shall remain vested in the Company until the Client has made full payment of all amounts due

under this Agreement. Upon receipt of full payment, ownership of the Products shall automatically transfer to the Client without the need for any further act or document.

The transfer of risk or ownership shall not affect the Company's obligations under the applicable Warranty in respect of verified manufacturing defects.

8. Inspection and Acceptance

8.1 Inspection of Products

Upon completion of delivery and installation, the Client or the Client's authorized representative shall promptly inspect the Products to verify that they conform to the approved drawings, specifications, quantities and workmanship as set out in this Agreement. The Client shall conduct such inspection within a reasonable period and communicate any observations or discrepancies in writing to the Company.

If no written objections or deficiencies are reported within the inspection period specified under this Agreement, the Products shall be deemed to have been inspected, accepted and approved by the Client. Minor cosmetic variations, finishing touch-ups or defects that do not materially affect the quality, safety, functionality or intended use of the Products shall not constitute valid grounds for rejection, cancellation or withholding of payment and shall be rectified by the Company within a reasonable period.

8.2 Notification of Defects

The Client shall notify the Company in writing of any visible defects, shortages, damage or non-conformity within **seven (7) calendar days** from the date of delivery or installation. The written notice shall clearly specify the nature of the defect together with supporting photographs or other reasonable evidence, where applicable.

Failure to notify the Company within the prescribed period shall constitute conclusive evidence that the Products have been delivered in good condition and in accordance with the approved specifications, without prejudice to the Client's rights in respect of any latent manufacturing defects covered under the applicable Warranty.

8.3 Acceptance of Products

The Client's continued use, occupation, relocation, alteration or commercial use of the Products after delivery or installation, without raising any written objection within the prescribed inspection period, shall constitute unconditional acceptance of the Products and confirmation that the Company has substantially fulfilled its contractual obligations.

Such acceptance shall not affect the Client's right to claim repairs or replacements for valid manufacturing defects covered under the applicable Warranty, but shall preclude any subsequent rejection of the Products based on visible defects that ought reasonably to have been identified during the inspection period.

9. Warranty

9.1 Warranty Coverage

The Company warrants that all Products supplied under this Agreement shall be free from manufacturing defects in material and workmanship for the warranty period specifically mentioned in the approved Quotation, Purchase Order, Work Order or Warranty Certificate ("**Warranty Period**"), commencing from the date of successful installation, handover or customer acceptance, whichever occurs earlier.

The warranty is provided solely to the original Client and shall apply only to Products that have been properly installed by the Company or its authorized representatives and used under normal residential, commercial or institutional operating conditions in accordance with the Company's recommended usage and maintenance instructions.

During the Warranty Period, the Company shall, upon verification of a valid warranty claim, repair, replace or rectify the defective Product or defective component, at its sole discretion and without any obligation to replace the entire Product where the defect can reasonably be rectified by repairing or replacing the affected part.

The Company's decision regarding the appropriate method of rectification, repair or replacement shall be final and binding, provided such decision is exercised reasonably and in accordance with industry standards.

Warranty services shall be provided only during the Company's normal business hours and within a reasonable period after inspection of the reported defect, subject to availability of replacement materials, spare parts and site accessibility.

9.2 Warranty Exclusions

The warranty provided under this Agreement is limited exclusively to manufacturing defects and shall not apply to any defect, damage, deterioration or failure arising directly or indirectly from any of the following circumstances:

- Misuse, abuse, negligence or improper handling of the Products.
- Normal wear and tear arising from ordinary usage over time.
- Accidental damage, impact damage, scratches, dents, cracks or breakage caused by external force.
- Water leakage, seepage, flooding, excessive moisture, humidity or prolonged exposure to liquids.
- Fire, smoke, lightning, earthquake, cyclone, storm, flood or any other natural disaster or Force Majeure event.
- Termite infestation, fungal growth, pest attack or rodent damage.
- Exposure to corrosive chemicals, acids, solvents, cleaning agents, bleaching agents or abrasive materials.
- Fading, discoloration or deterioration of fabrics, leather, veneers, laminates, polish, paint, coatings or finishes resulting from prolonged exposure to sunlight, ultraviolet radiation, heat, moisture or environmental conditions.
- Variations in wood grain, veneer texture, marble patterns, natural stone, leather appearance, fabric weave or colour tone, which are inherent characteristics of natural materials and shall not be considered manufacturing defects.
- Improper installation, relocation, dismantling, modification or reinstallation carried out by any person other than the Company or its authorized representatives.
- Unauthorized repairs, alterations, additions or modifications made without the Company's prior written approval.
- Improper cleaning methods, inadequate maintenance or failure to follow the Company's recommended care and maintenance instructions.
- Excessive loading, overloading, commercial misuse or usage beyond the intended design capacity of the Product.
- Consumable items including light fittings, batteries, gas lifts, wheels, rubber pads, protective caps, cushions, upholstery filling or any other component ordinarily subject to periodic replacement unless affected by a manufacturing defect.

The Company shall not be liable for cosmetic variations, minor dimensional tolerances, colour differences within accepted manufacturing standards or any defect resulting from the Client's approved design, specifications or material selection.

9.3 Limitation of Warranty Obligation

The Company's obligations under this Warranty shall be strictly limited to the inspection, repair, replacement or rectification of the defective Product or defective component, at the Company's sole discretion.

Under no circumstances shall the Company be liable for:

- Replacement of the entire furniture item where repair or replacement of the defective component is reasonably sufficient.
- Transportation, shifting, dismantling or reinstallation costs unless expressly covered under the Warranty Certificate.
- Loss of business, loss of profits, loss of revenue, business interruption, inconvenience, loss of use or any indirect, incidental, special, exemplary or consequential damages arising from any defect in the Products.
- Any claim arising after the expiry of the applicable Warranty Period.
- Any defect that was apparent at the time of delivery or installation but was not reported by the Client within the prescribed inspection period.

The Client shall promptly notify the Company in writing upon discovering any alleged manufacturing defect and shall provide reasonable access to the Products for inspection, testing and rectification. Failure to provide such access or continued misuse of the defective Product after discovery may result in rejection of the warranty claim.

The repair or replacement of any Product or component during the Warranty Period shall not extend, renew or restart the original Warranty Period unless expressly agreed in writing by the Company.

The remedies expressly provided under this Warranty constitute the sole and exclusive remedies available to the Client in respect of manufacturing defects, and all other warranties, whether express or implied, to the maximum extent permitted by applicable law, are hereby excluded.

10. Change Orders

10.1 Change Orders

Any request by the Client for changes to the approved scope of work, including but not limited to dimensions, design, layout, materials, finishes, colours, hardware, specifications,

quantities or any other aspect of the Products or Services, shall be documented through a written **Change Order** duly approved by both Parties.

No verbal instruction, telephone conversation, email, message or site discussion shall constitute a valid modification to this Agreement unless confirmed in writing by the Company and accepted by the Client. Every Change Order shall clearly specify the revised scope of work, additional or reduced costs, revised delivery schedule, installation timeline and any other commercial or technical implications before implementation.

10.2 Effect of Change Orders

The Company reserves the right to revise the Contract Price, manufacturing schedule, delivery timeline, installation programme and any other contractual obligations arising from the requested changes. No Change Order shall be implemented until it has been reviewed, priced and approved in writing by both Parties.

Any delay resulting from the Client's request for changes, delayed approvals or repeated revisions shall automatically extend the Project completion period, and the Company shall not be liable for any consequential delay, additional cost or loss arising therefrom. Once approved, every Change Order shall form an integral part of this Agreement and shall have the same legal force and binding effect as the original terms and conditions.

11. Cancellation and Refund

11.1 Cancellation of Orders

The Client may request cancellation of an Order only by providing written notice to the Company. Any cancellation shall become effective only upon the Company's written acceptance.

Orders for customized, made-to-order or specially manufactured Products, including Products designed according to the Client's specifications, dimensions, materials, colours or finishes, shall not ordinarily be cancelled once procurement of materials, manufacturing or production has commenced.

Where the Company agrees to accept cancellation after commencement of the Project, the Client shall be liable for all costs and expenses incurred up to the date of cancellation, including design charges, material procurement, manufacturing, labour, transportation, storage, taxes, administrative expenses and payments made to suppliers or subcontractors.

11.2 Refunds

Refunds, where approved by the Company, shall be subject to deduction of all actual costs, expenses and liabilities incurred in connection with the Project, including completed work, customized manufacturing, materials procured, labour charges, transportation, taxes and administrative expenses.

No refund shall be payable for Products that have been fully manufactured, delivered or installed, except where required under applicable law or expressly agreed in writing by the Parties.

Any approved refund shall be processed within a reasonable period after adjustment of all outstanding dues and contractual obligations. The Company's rights to recover any unpaid amounts or damages arising from the Client's cancellation or breach of this Agreement shall remain unaffected.

12. Liability and Disputes

12.1 The Company's total liability shall not exceed the value of the affected products.

Before initiating arbitration, the Parties shall make reasonable efforts to resolve disputes amicably through written discussions. The prevailing Party shall be entitled to remedies available under applicable law.

12.2 Neither party shall be liable for indirect or consequential damages.

12.3 This Agreement shall be governed by the laws of India and disputes shall be resolved through arbitration under the Arbitration and Conciliation Act, 1996.

13. Annexure

The following Annexures, together with all schedules, appendices, attachments, drawings, specifications, certificates, forms and supporting documents referred to herein, shall constitute an integral and inseparable part of this Agreement. Each Annexure shall be read in conjunction with the provisions of this Agreement and shall have the same legal force, validity and binding effect as though expressly incorporated into the body of this Agreement.

The Parties acknowledge and agree that each Annexure accurately records the commercial, technical and operational requirements applicable to the Project and shall govern the execution of the respective obligations of the Parties.

Any modification, revision, substitution or amendment to any Annexure shall be valid only if made in writing and duly signed or otherwise expressly approved by both Parties.

Where any inconsistency exists between the provisions of this Agreement and any Annexure, the provisions of this Agreement shall prevail unless the Parties expressly agree otherwise through a written amendment.

Annexure A – Approved Quotation

This Annexure shall contain the final quotation accepted by the Client and shall form the commercial basis of the Agreement. The quotation shall include the complete scope of supply, item descriptions, furniture specifications, quantities, dimensions, unit prices, discounts, taxes, delivery charges, installation charges, validity period, payment terms, exclusions and total contract value.

The Client acknowledges that only the furniture, services and materials specifically mentioned in the approved quotation shall form part of the Company's contractual obligations. Any additional work or material not included in the approved quotation shall be treated as extra work and shall be executed only upon written approval of a Change Order together with the applicable additional charges.

Annexure B – Bill of Quantities (BOQ)

The Bill of Quantities shall provide a detailed schedule of every furniture item forming part of the Project. It shall specify the item description, quantity, dimensions, unit of measurement, material specifications, finishes, hardware, accessories, unit price and total contract value.

The BOQ shall be used for commercial evaluation, production planning, procurement, billing, quality verification and project execution. Any discrepancy identified between the BOQ and the approved drawings shall immediately be brought to the attention of the Company before commencement of manufacturing.

Annexure C – Approved Drawings

This Annexure shall include all approved furniture layouts, shop drawings, manufacturing drawings, sectional drawings, working drawings, furniture elevations, three-dimensional (3D) visualizations, renderings, installation details and all other technical drawings approved by the Client.

The Company shall manufacture the Products strictly in accordance with the latest approved drawings. Any request for modification after approval shall constitute a Change Order and may result in revision of the contract value, manufacturing schedule, delivery timeline and installation programme.

Annexure D – Material and Finish Schedule

This Annexure shall contain the complete list of approved materials proposed for use in the Project including plywood, MDF, HDHMR, particle board, solid wood, veneers, laminates, acrylic finishes, PU coatings, polish finishes, fabrics, leather, foam, glass, mirrors, metals, stone, hardware, locks, hinges, drawer channels, handles, edge bands, adhesives, fasteners and all other accessories.

The Client acknowledges that natural variations in wood grain, veneer patterns, marble texture, leather appearance, fabric weave, colour tone and other naturally occurring characteristics shall not constitute manufacturing defects and shall be deemed acceptable within normal commercial tolerances.

Annexure E – Payment Schedule

This Annexure shall specify the complete payment structure agreed between the Parties, including advance payment, stage-wise payments, milestone payments, taxes, retention amounts (if applicable), due dates, acceptable payment methods, late payment charges and final settlement procedures.

The Client agrees to make payments strictly in accordance with the agreed schedule. Delay in payment shall entitle the Company to suspend manufacturing, procurement, delivery or installation activities until the outstanding dues are fully settled, without prejudice to any other contractual or legal remedies available to the Company.

Annexure F – Delivery and Installation Schedule

This Annexure shall specify the planned manufacturing period, inspection schedule, dispatch programme, transportation schedule, delivery dates, installation sequence, expected completion dates and final handover timeline.

All delivery dates shall remain subject to timely receipt of payments, approvals, site readiness, uninterrupted access to the Project Site, availability of materials and circumstances beyond the Company's reasonable control.

Any delay caused by the Client, including delayed approvals, incomplete civil works, restricted site access or non-availability of utilities, shall automatically extend the completion schedule without imposing any liability upon the Company.

Annexure G – Warranty Certificate

This Annexure shall specify the warranty period applicable to each Product together with the scope of warranty coverage, limitations, exclusions and warranty claim procedures.

The warranty shall cover only manufacturing defects occurring under normal usage conditions and shall not extend to damage arising from misuse, negligence, impact, water seepage, excessive moisture, improper cleaning, unauthorized alterations, accidents, natural disasters, pest infestation, normal wear and tear or any cause beyond the Company's reasonable control.

The Company's liability under the warranty shall be limited solely to repair or replacement of the defective component, at its discretion.

Annexure H – Handover Certificate

Upon completion of delivery and installation, the Parties shall jointly inspect the Products and execute a Handover Certificate confirming that the Project has been substantially completed in accordance with the approved specifications.

The Handover Certificate may identify minor punch-list items which do not materially affect the intended use of the Products. Such items shall be rectified by the Company within a reasonable period without delaying the handover process.

Execution of the Handover Certificate shall constitute confirmation that possession of the Products has been transferred to the Client, subject to the Company's ownership rights until full payment is received.

Annexure I – Customer Acceptance Form

The Customer Acceptance Form shall record the Client's confirmation that the Products have been inspected and found substantially compliant with the approved drawings, specifications and contractual requirements.

The Client shall clearly record any visible defects, shortages or observations at the time of inspection. Failure to record such observations or continued use of the Products after installation shall be deemed unconditional acceptance of the Products, without prejudice to any applicable warranty rights relating to latent manufacturing defects.

Annexure J – Change Order Form

Every modification relating to the scope of work, dimensions, quantity, materials, finishes, hardware, colour, design, delivery schedule, installation programme or commercial terms shall be documented through a written Change Order.

Each Change Order shall clearly specify the revised scope of work, additional or reduced contract value, revised completion schedule, revised payment obligations and any consequential impact upon the Project.

No Change Order shall become effective unless approved in writing by both Parties, and every approved Change Order shall automatically become part of this Agreement with the same legal force and effect as the original Agreement.

13. WEBSITE POLICIES AND INCORPORATION BY REFERENCE

13.1 Website Policies

The Client acknowledges that the Company's official website, **www.livincart.com**, contains additional policies, guidelines, procedures, warranty terms, product care instructions and other information relating to the Products and Services offered by the Company.

The Client agrees that the policies published on the Company's official website, as amended from time to time, shall form an integral part of this Agreement to the extent they are not inconsistent with the express terms of this Agreement or applicable law.

13.2 Amendments to Website Policies

The Company reserves the right to update, modify or revise its website policies from time to time to reflect changes in business practices, operational requirements or applicable laws. Any such amendment shall apply prospectively and shall not affect the rights and obligations already accrued under this Agreement, unless otherwise required by law or expressly agreed in writing by both Parties.

13.3 Conflict of Documents

In the event of any conflict or inconsistency between this Agreement and any policy published on the Company's website, the provisions of this Agreement shall prevail, unless the Parties expressly agree otherwise in writing.

14. SIGNATURES

IN WITNESS WHEREOF, the Parties are acknowledged all policies and have executed this Agreement on the date first written above.

Customer	**Company**
Name:	Name:
Signature: _____	Signature:_____
Date:	Date: